

Federal Constitution

NOTES

Art. 138

1. This Article was inserted by Act 26/1963, section 52, in force from 16-09-1963.

Clause (2)

The word “The” substituted for the words “Subject to Article 146A, the” by Act A354, paragraph 31(a), in force from 27-08-1976.

Clause (2)(b)

The words “or, if the Attorney General is a member of Parliament or is appointed otherwise than from among members of the Judicial and Legal Service, the Solicitor General” were inserted by Act A354, paragraphs 31(b), in force from 27-08-1976.

Clause (2)(c)

- a. The words “or are qualified to be” were inserted by Act A354, paragraphs 31(c), in force from 27-08-1976.
- b. Subsection 18(2) of Act A566, in force from 01-01-1985, provides that a reference to the Federal Court shall now be construed as a reference to the Supreme Court.
- c. *See also* Notes on this Article on the preceding page.
- d. The words “Chief Justice of the Federal Court” and “Federal Court, Court of Appeal” substituted respectively for the words “Lord President of the Supreme Court” and “Supreme Court” by Act A885, section 30, in force from 24-06-1994.

2. The earlier Article which was repealed by Act 10/1960, section 20, in force from 31-05-1960, read as follows:

“138. (1) There shall be a Judicial and Legal Service Commission.

(2) Without prejudice to the functions exercisable by the Judicial and Legal Service Commission under any other Article, the jurisdiction of the Commission shall extend to all members of the Judicial and Legal Service other than the Chief Justice and the other judges of the Supreme Court and the Attorney General.

(3) The Judicial and Legal Service Commission shall consist of—

- (a) the Chief Justice, who shall be Chairman;
- (b) the Attorney General;
- (c) the senior puisne judge;
- (d) the deputy chairman of the Public Services Commission; and
- (e) one or more other members, who shall be appointed by the Yang di-Pertuan Agong, after consultation with the Chief Justice, from among judges or former judges of the Supreme Court.”.

3. *See* Art. 148(1).

Art. 139

See Art. 144(5B) & 148(1).

Clause (1)

- a. The words “paragraphs (c) and (f)” in the original text were amended by Act 10/1960, paragraph 21(a), in force from 31-05-1960, to read “paragraphs (b), (c) and (f)”. Act 26/1963, subsection 53(2), in force from 16-09-1963, restored the original version “paragraphs (c) and (f)”.
- b. The words “to members of the public services of the State of Malacca and the State of Penang” substituted for the words “or members of the public service of the State of Malacca or the State of Penang” by Act 10/1960, paragraph 21(b), in force from 31-05-1960.
- c. The words “, (e)” was inserted after the word “(c)” by Act A514, paragraph 9(1)(a), in force from 15-05-1981.
- d. The words “paragraphs (c) and (f)” substituted for the words “paragraphs (c), (e) and (f)” by Act A885, section 31, in force from 24-06-1994.

(1A) The jurisdiction of the Public Services Commission shall extend to—

- (a) members of the general public service of the Federation who are employed in a federal department in the State of Sabah or Sarawak;
- (b) members of the public service of the State of Sabah or Sarawak who are seconded to the general public service of the Federation; and
- (c) members of the public service of the State of Sabah or Sarawak serving in federal posts or in any posts which have become federal posts in that State and who have exercised the option to be members of the general public service of the Federation.

(2) The Legislature of any State other than Malacca and Penang may by law extend the jurisdiction of the Public Services Commission to all or any persons in the public service of that State, but no such law shall take effect earlier than twelve months from the date of its passing; and if at any time there is not, in any such State in which no such law is in force, established and exercising its functions a State Public Service Commission, the jurisdiction of the Public Services Commission shall, if federal law so provides, extend to all members of the public service of that State.

(3) Any extension of the jurisdiction of the Public Service Commission made by the Legislature of any State pursuant to Clause (2) may be revoked or modified by a law passed by the Legislature of such State.

(4) The Public Services Commission shall consist of the following members appointed by the Yang di-Pertuan Agong in his discretion but after considering the advice of the Prime Minister and after consultation with the Conference of Rulers, that is to say, a chairman, a deputy chairman and not less than four other members; but the number of the other members shall not, until the Yang di-Pertuan Agong by order otherwise provides, exceed thirty.

(5) Either the chairman or the deputy chairman shall be, and both may be, appointed from among persons who are, or have at any time within the period of five years immediately preceding the date of their first appointment been, members of any of the public services.

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Art. 139—(cont.)

Clause (1A)

Added by Act A514, paragraph 9(1)(b), in force from 15-05-1981.

Clause (2)

- a. The words “after the relevant date” which appeared after the words “and if at any time” were repealed by Act 25/1963, section 8, in force from 29-08-1963.
- b. The words “State Public Service” substituted for the words “Commission corresponding in status and jurisdiction to the Public Services” by Act 26/1963, section 70, in force from 16-09-1963.
- c. *See* Art. 146D(3).

Clause (3)

- a. This Clause was repealed by Act 25/1963, section 8, in force from 29-08-1963 and read as follows:

“(3) The relevant date referred to in Clause (2) is whichever of the following is the earlier—

 - (a) the thirty-first day of December, nineteen hundred and sixty-two; or
 - (b) the date on which there are first in operation as part of the Constitution of the State all the provisions set out in Part I of the Eighth Schedule or provisions substantially to the same effect.”.
- b. This new Clause was inserted by Act 27/1968, section 3, in force from 09-09-1968.

Clause (4)

- a. The words “Subject to Article 146B” appearing at the commencement were inserted by Act 26/1963, subsection 59(1), in force from 16-09-1963. The Act also substituted for the words “eight other members” which appeared at the end of the Clause for the words “ten other members”.
- b. Act 59/1966, section 2, in force from 19-09-1966, substituted the word “twelve” for the word “ten”.
- c. The word “The” substituted for the words “Subject to Article 146B the” and the word “thirty” substituted for the word “twelve” by Act A514, paragraph 9(1)(c), in force from 15-05-1981.

Note:

“Notwithstanding anything in the Constitution or the Constitution of the State of Sabah or Sarawak, any member of the public services of the State of Sabah or Sarawak serving in any federal posts or in any posts which have become federal posts in that State and who has exercised, in whatever manner or form, any option offered by the Federal Government to be a member of the general public service of the Federation shall be deemed to have opted and accordingly transferred to or appointed as a member of the public service of the Federation.”
— *See* subsection 9(2) of Act A514, in force from 15-05-1981.

- d. The words “other members; but the number of other members shall not, until the Yang di-Pertuan Agong by order otherwise provides, exceed thirty” substituted for the words “nor more than thirty other members” by Act A767, section 3, in force from 11-05-1990.
- e. *See* P.U. (A) 149/1990.

(6) A member of any of the public services appointed to be chairman or deputy chairman shall not be eligible for any further appointment in the service of the Federation other than as a member of a Commission to which this Part applies.

Police Force Commission

140. (1) There shall be a Police Force Commission whose jurisdiction shall extend to all persons who are members of the police force and which, subject to the provisions of any existing law, shall be responsible for the appointment, confirmation, emplacement on the permanent or pensionable establishment, promotion, transfer and exercise of disciplinary control over members of the police force:

Provided that Parliament may by law provide for the exercise of such disciplinary control over all or any of the members of the police force in such manner and by such authority as may be provided in that law, and in that event, if the authority is other than the Commission, the disciplinary control exercisable by such authority shall not be exercised by the Commission; and no provision of such law shall be invalid on the ground of inconsistency with any provision of this Part.

(2) Federal law may provide for the exercise of other functions by the Police Force Commission.

(3) The Police Force Commission shall consist of the following members, that is to say:

- (a) the Minister for the time being charged with responsibility for the police, who shall be Chairman;
- (b) the officer of police in general command of the police force;
- (c) the person performing the duties of the office of Secretary General to the Ministry under the Minister for the time being charged with responsibility for the police;
- (d) a member of the Public Services Commission appointed by the Yang di-Pertuan Agong;
- (e) not less than two nor more than six other members, appointed by the Yang di-Pertuan Agong.

Federal Constitution

NOTES

Art. 140

1. The present Article was substituted by Act 10/1960, section 22, in force from 01-04-1961. The original Article as it stood on Merdeka read as follows:

“140. (1) There shall be a Police Service Commission, whose jurisdiction shall, subject to Article 144, extend to all persons who are members of the police service.

(2) The Police Service Commission shall consist of the following members, that is to say,—

- (a) a chairman appointed by the Yang di-Pertuan Agong, who shall be either the chairman or the deputy chairman of the Public Services Commission;
- (b) a member possessing legal qualifications, who shall be appointed by the Yang di-Pertuan Agong after consultation with the Chief Justice;
- (c) not less than two nor more than four other members appointed by the Yang di-Pertuan Agong at his discretion but after considering the advice of the Minister for the time being charged with responsibility for the police.”.

Clause (1): Proviso inserted by Act A354, paragraph 32(a), in force from 27-08-1976.

Clause (3)

- a. The words “officer of police in general command of the police force” substituted for the words “Commissioner of Police” in paragraph (b) by Act 26/1963, section 70, in force from 16-09-1963.
- b. The words “not less than two nor more than four” substituted for the word “two” at the commencement of paragraph (e) by Act 26/1963, section 70, in force from 16-09-1963.
- c. *Clause (3)(a):* See Art.142(1).
- d. Act A354, paragraph 32(b), in force from 27-08-1976, amended *Clause (3)(e)* by substituting the word “six” for the word “four”.

Clause (4)

- a. The words “or superior” were inserted by Act 26/1963, section 70, in force from 16-09-1963.
- b. For the appointment of the Inspector General of Police and Deputy Inspector General of Police, see section 5 of Police Act 1967 [Act 344].

Clause (6)(b)

The words “or a committee consisting of members of the Commission and of the force” were inserted by Act A585, section 26, in force from 14-04-1984.

2. See Art. 148(1).

3. See Police Act 1967.

(4) The Yang di-Pertuan Agong may designate as special posts the posts of Inspector General of Police, Deputy Inspector General of Police and any other posts in the police force which in his opinion are of similar or superior status; and the appointment to any post so designated shall not be made in accordance with Clause (1) but shall be made by the Yang di-Pertuan Agong on the recommendation of the Police Force Commission.

(5) Before acting in accordance with Clause (4) on the recommendation of the Police Force Commission, the Yang di-Pertuan Agong shall consider the advice of the Prime Minister, and may once refer the recommendation back to the Commission in order that it may be reconsidered.

(6) The Police Force Commission may provide for all or any of the following matters:

- (a) the organization of its work and the manner in which its functions are to be performed, and the keeping of records and minutes;
- (b) the duties and responsibilities of the several members of the Commission, including the delegation to any member of the Commission or the police force or board of officers of such force or a committee consisting of members of the Commission and of the force of its powers or duties;
- (c) the consultation by the Commission with persons other than its members;
- (d) the procedure to be followed by the Commission in conducting its business (including the fixing of a quorum), the appointment, at its option, of a vice-chairman from among its members, and the functions of the vice-chairman;
- (e) any other matters for which the Commission considers it necessary or expedient to provide for the better performance of its functions.

(7) In this Article “transfer” does not include transfer without change of rank within the police force.

141. (*Repealed*).

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Art. 141

1. *See* Art. 148(1).

Clause (2)

The words “in his discretion but after considering the advice of the Prime Minister and after consultation with the Conference of Rulers” as shown in italics below, were inserted by Act 10/1960, section 23, in force from 31-05-1960.

2. This Article which read as follows was repealed by Act A514, subsection 10(1), in force from 15-05-1981:

“141.(1) Subject to Clause (4), there shall be a Railway Service Commission, whose jurisdiction shall, subject to Article 144, extend to all persons who are members of the railway service.

(2) The Railway Service Commission shall consist of the following members appointed by the Yang di-Pertuan Agong *in his discretion but after considering the advice of the Prime Minister and after consultation with the Conference of Rulers*, that is to say, a chairman, a deputy chairman and not less than two nor more than six other members; and either the chairman or the deputy chairman shall be, and both may be, appointed from among persons who are, or have at any time within the period of five years immediately preceding the date of their first appointment been, members of any of the public services.

(3) One of the members of the Railway Service Commission shall be appointed from among the members of the Public Services Commission and two of the other members shall, if suitable persons having experience in railway service or railway administration are available, be appointed from among such persons.

(4) A member of any of the public services appointed to be chairman or deputy chairman shall not be eligible for any further appointment in the service of the Federation other than as a member of a Commission to which this Part applies.

(5) If the railway service ceases to be a public service of the Federation Parliament may by law abolish the Railway Service Commission.”.

Notes:

Act A514, section 10, in force from 15-05-1981, which repealed Article 141 made provision in subsection (2) as follows:

“(2) Upon the coming into force of this Act—

- (a) any matter or proceeding in respect of any member of the railway service which is pending before the Railway Service Commission shall be proceeded with by the Public Services Commission;
- (b) any delegation made to any person or Board by the Railway Service Commission under Clause (6) of Article 144 shall continue to have full force and effect unless otherwise revoked;
- (c) the appointment of any person as a member of the Railway Service Commission shall cease to have effect; and
- (d) any reference to the Railway Service Commission in any written law shall be construed as reference to the Public Services Commission.”.

Education Service Commission

141A. (1) There shall be an Education Service Commission, whose jurisdiction shall, subject to Article 144, extend to all persons who are members of the service mentioned in paragraph (h) of Clause (1) of Article 132.

(2) The Education Service Commission shall consist of the following members appointed by the Yang di-Pertuan Agong in his discretion but after considering the advice of the Prime Minister and after consultation with the Conference of Rulers, that is to say, a Chairman, a Deputy Chairman and not less than four other members; but the number of the other members shall not, until the Yang di-Pertuan Agong by order otherwise provides, exceed eight*.

(3) A member of any of the public services appointed to be Chairman or Deputy Chairman shall not be eligible for any further appointment in the service of the Federation other than as a member of a Commission to which this Part applies.

General provisions relating to Commissions

142. (1) Subject to paragraph (a) of Clause (3) of Article 140, a member of either House of Parliament or of the Legislative Assembly of a State shall not be or be appointed to be a member of a Commission to which this Part applies.

(2) Subject to Clause (3), a person shall not be appointed to be a member of any of the Commissions to which this Part applies if he is, and shall be removed by order of the Yang di-Pertuan Agong if he becomes—

- (a) a member of any of the public services;
- (b) an officer or employee of any local authority, or of any body, whether corporate or otherwise, or of any body or authority established by law for public purposes;
- (c) a member of a trade union or of a body or association affiliated to a trade union.

(2A) In addition to any disqualification provided under Clause (2), the Chairman or Deputy Chairman of any of the Commissions

*Subsequently “twelve”—see P.U. (A) 150/1990.

*Subsequently “sixteen”—see P.U. (A) 169/2001.

*Now “twenty-four”—see P.U. (A) 127/2006.

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NOTES

Art. 141A

1. *See* Art. 148(1).
2. This Article was inserted by Act A193, section 4, in force from 01-01-1974.

Clause (2)

- a. The words “not less than four but not more than eight other members” substituted for the words “four members” by Act A354, section 33, in force from 27-08-1976.
- b. The words “, a Deputy Chairman” were inserted by Act A442, paragraph 4(a), in force from 31-12-1978.
- c. The words “others members; but the number of the other members shall not, until the Yang di-Pertuan Agong by order otherwise provides, exceed eight” substituted for the words “but not more than eight other members” by Act A767, section 4, in force from 11-05-1990.

Clause (3)

The words “or Deputy Chairman” were inserted by Act A442 paragraph 4(b), in force from 31-12-1978.

Art. 142

Clause (1)

- a. The words “Subject to paragraph (a) of Clause (3) of Article 140, a member” substituted for the words “A member” by Act 10/1960, section 24, in force from 01-04-1961.
- b. The words “shall not be or be appointed” substituted for the words “shall not be appointed” by Act A885, paragraph 32(a), in force from 24-06-1994.

Clause (2)

The words “and shall be removed by order of the Yang di-Pertuan Agong” substituted for the words “and shall not remain such a member” by Act A514, paragraph 11(a), in force from 15-05-1981. Paragraph (b) was substituted by Act A514, paragraph 11(a), in force from 15-05-1981 and read as follows:

“(b) an officer or employee of any local authority or of a body corporate or authority established by law for public purposes;”.

Clause (2)(b)

The present paragraph was substituted by Act A566, paragraph 19(1)(a), in force from 16-12-1983, and replaced the earlier Article which read as follows:

“(b) a member of any board of directors or board of management, or an officer or employee, or engages in the affairs or business, of any organization or body, whether corporate or otherwise, or of any commercial, industrial or other undertaking, whether or not he receives any remuneration, reward, profit or benefit from it;”.

Clause (2A)

- a. The present Clause was substituted by Act A566, paragraph 19(1)(b), in force from 16-12-1983. The earlier Clause which was inserted by Act A514, paragraph 11(b), in force from 15-05-1981, read as follows:

“(2A) The disqualification in paragraph (b) of Clause (2) shall not apply where such organization or body carries out any welfare or voluntary work or objective beneficial to the community or any part thereof, or any other work or objective of a charitable or social nature, and the member does not receive any remuneration, reward, profit or benefit from it.”.
- b. The words “or deputy chairman” were inserted immediately after the word “Chairman” by Act A704, section 9, in force from 10-06-1988.

to which this Part applies shall be disqualified from holding such office if after three months of his appointment to such office or at any time thereafter he is or becomes a member of any board of directors or board of management, or an officer or employee, or engages in the affairs or business, of any organization or body, whether corporate or otherwise, or of any commercial, industrial or other undertaking, whether or not he receives any remuneration, reward, profit or benefit from it:

Provided that such disqualification shall not apply where such organization or body carries out any welfare or voluntary work or objective beneficial to the community or any part thereof, or any other work or objective of a charitable or social nature, and the member does not receive any remuneration, reward, profit or benefit from it.

(3) Clause (2) does not apply to *ex officio* members; and a member of any of the public services may be appointed to be and remain Chairman or Deputy Chairman and, if he is on leave prior to retirement, he may be appointed to be another member, of any of the said Commissions.

(3A) Where, during any period, the Chairman of any of the said Commissions has been granted leave of absence by the Yang di-Pertuan Agong or is unable, owing to his absence from the Federation, illness or any other cause, to discharge his functions, the Deputy Chairman of that Commission shall discharge the functions of the Chairman during that period, and if the Deputy Chairman is also absent or unable to discharge such functions, a member of the Commission may be appointed by the Yang di-Pertuan Agong to discharge the functions of the Chairman during that period.

(4) Where, during any period, a member of any of the said Commissions has been granted leave of absence by the Yang di-Pertuan Agong or is unable, owing to his absence from the Federation, illness or any other cause, to discharge his functions as a member, then—

- (a) if he is an appointed member, the Yang di-Pertuan Agong may appoint to exercise his functions during that period any person who would be qualified to be appointed in his place, and the appointment of such a person shall be made in the same manner as that of the member whose functions he is to exercise;
- (b) if he is an *ex officio* member, any person authorized